

9:00 AM

Line 8

26-CLJ-03355      MUNEERAH CRAWFORD VS. T MOBILE USA INC., ET AL

MUNEERAH CRAWFORD  
T MOBILE USA INC.

PRO SE  
JOSHUA L. RAYES

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Plaintiff's Motion for Leave to File Second Amended Complaint to Add Cause of Action for Financial Elder Abuse

**TENTATIVE RULING:**

This matter is dropped from calendar. Plaintiff has dismissed the complaint.

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9:00 AM

Line 9/UD Line 1

26-UDL-00603              ANA TUIFUA VS. TEVITA TUIFUA, ET AL

ANA TUIFUA  
TEVITA TUIFUA

PRO SE  
PRO SE

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Defendants' Motion for Judgment on the Pleadings

**TENTATIVE RULING:**

This is an unlawful detainer action. Defendants Tevita Tuifua, Cherry Tuifua, Toakase Tuifua, and Ana Tuifua have moved for judgment on the pleadings against Plaintiff Ana Tuifua.<sup>1</sup>

Defendants' motion for judgment on the pleadings is GRANTED, without leave to amend.

*LEGAL STANDARD*

A motion for judgment on the pleadings has the same function as a general demurrer but is made after the time for demurrer has expired; the rules governing demurrers apply. (*Cloud v. Northrop Grumman Corp.* (1998) 67 Cal.App.4th 995, 999.)

The purpose of a demurrer is to test the legal sufficiency of the facts alleged in the operative complaint to see whether they state a cause of action under any legal theory, as a matter of law. (*New Livable Cal. v. Association of Bay Area Gov'ts* (2020) 59 Cal.App.5th 709, 714–715; *Genis v. Schainbaum* (2021) 66 Cal.App.5th 1007, 1014.) When considering demurrers, courts “are required to construe the complaint liberally to determine whether a cause of action has been stated, given the assumed truth of the facts pleaded.” (*Picton v. Anderson Union High School Dist.* (1996) 50 Cal.App.4th 726, 733.)

“The complaint must be given a reasonable interpretation and read as a whole with its parts considered in their context.” (*Herman v. Los Angeles County Metropolitan Transportation Authority* (1999) 71 Cal.App.4th 819, 824.) The court “may consider all material facts pleaded in the complaint and those arising by reasonable implication therefrom; it may not consider contentions, deductions or conclusions of fact or law. (*Young v. Gannon* (2002) 97 Cal.App.4th 209, 220 (citing *Moore v. Conliffe* (1994) 7 Cal.4th 634, 638; *Montclair Parkowners Assn. v. City of Montclair* (1999) 76 Cal.App.4th 784, 790).)

*ANALYSIS*

1. Plaintiff May Not Represent the Toakase Tuifua Revocable Living Trust in this Action

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<sup>1</sup> Defendants have clarified that Plaintiff Ana Tuifua and Defendant Ana Tuifua are related but different people.

Plaintiff brings this action in her capacity as a trustee of the Toakase Tuifua Revocable Living Trust. (Complaint, section 1.) Defendants argue that, as a non-attorney, Plaintiff is prohibited from representing the trust in this action. The Court agrees.

“No person shall practice law in California unless the person is an active member of the State Bar.” (Bus. & Prof. Code, § 6125.) This prohibition prohibits a non-attorney from representing third parties, which includes trustees representing trusts. “[A] trustee’s duties in connection with his or her office do not include the right to present argument pro se in courts of the state, because in this capacity the trustee would be representing the interests of others and would therefore be engaged in the unauthorized practice of law.” (*Ziegler v. Nickel* (1998) 64 Cal.App.4th 545, 548.)

Here, Plaintiff Ana Tuifua filed the Complaint as trustee of the Toakase Tuifua Revocable Living Trust. No attorney since appeared on behalf of Plaintiff. Accordingly, Plaintiff is prohibited from proceeding in this action without first retaining an attorney.

2. Plaintiff’s Notice to Quit Fails to Comply with Code Civ. Proc. § 1161(2)

Code Civ. Proc. Section 1161(2) governs the contents of a notice to pay rent or quit. The statute provides, in relevant part, that a notice to quit must state “the amount that is due, the name, telephone number, and address of the person to whom rent payment shall be made, and, if payment may be made personally, the usual days and hours that person will be available to receive payment.”

Here, Plaintiff’s 3-day notice to quit or pay rent states that payment may be made by mail or in person to Ana Tuifua and provides a phone number and address for Ms. Tuifua, but does not provide any information regarding the usual days and hours that Ms. Tuifua will be available to receive payment. (See Complaint [3-Day Notice or Pay Rent attached].)

California courts have consistently held that strict compliance with Section 1161 is required in unlawful detainer actions. (See, e.g., *Bevill v. Zoura* (1994) 27 Cal.App.4th 694, 697 [“[B]ecause of the summary nature of an unlawful detainer action, a notice is valid only if the lessor strictly complies with the statutorily mandated notice requirements.”]; *Culver Ctr. Partners E. #1, L.P. v. Baja Fresh Westlake Vill., Inc.* (2010) 185 Cal.App.4th 744, 749-50 [“the landlord must demonstrate strict compliance with the statutory notice requirements contained in section 1161 et seq” . . . “otherwise a landlord’s remedy is an ordinary suit for breach of contract with all the delays that remedy normally involves and without restitution of the demised property”].)

Under the strict compliance standard, Plaintiff’s notice to quit or pay rent is invalid on its face. The notice fails to provide the usual time days and hours during which payment in person may be accepted. This defect is clear on the face of the Complaint and is not curable. Thus, the Court finds this to be an adequate basis to grant this motion, notwithstanding the finding above that Plaintiff is prohibited from to representing the trust.

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The Court notes that Defendants separately made arguments that the notice to quit was invalid based on East Palo Alto Rent Stabilization Board regulations and the East Palo Alto Municipal Code. However, Defendants have not attached a copy of the relevant regulations and code sections with any supporting declaration or request for judicial notice. In fact, Defendants have not even quoted or otherwise described the alleged requirements with which Plaintiff purportedly failed to comply. The Court declines to take judicial notice of those authorities *sua sponte*. Thus, those arguments were not considered here.

Accordingly, Defendants' motion for judgment on the pleadings is GRANTED, without leave to amend. As a result, this action is now dismissed, without prejudice.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court by Minute Order and the Court will dispense with the need for a formal Order after hearing.

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10:00 AM

Line 10

26-CLJ-04775              BOUNCE AI, INC VS FOTOFILI NAMOA

BOUNCE AI, INC  
FOTOFILI NAMOA

ROBERT SCOTT KENNARD  
PRO SE

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Defendant's Motion to Compel Arbitration and Stay or Dismiss Proceedings

**TENTATIVE RULING:**

Defendant Fotofili Namoa's Motion to Compel Arbitration, filed July 17, 2025, is DENIED.  
(Code Civ. Proc. Sect. 1280 et. seq.)

This is a collection matter on a promissory note for a claimed debt of \$22,337.10. After service of the Summons and Complaint, Defendant filed the present Motion to Compel Arbitration.

*Governing law.*

Code Civ. Proc. § 1281.2, states, in part:

On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate that controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that:

- (a) The right to compel arbitration has been waived by the petitioner; or
- (b) Grounds exist for rescission of the agreement.
- (c) A party to the arbitration agreement is also a party to a pending court action ... with a third party, arising out of the same transaction or series of related transactions and there is a possibility of conflicting rulings on a common issue of law or fact. For purposes of this section, a pending court action ... includes an action or proceeding initiated by the party refusing to arbitrate after the petition to compel arbitration has been filed, but on or before the date of the hearing on the petition. ...

...

If the court determines that there are other issues between the petitioner and the respondent which are not subject to arbitration and which are the subject of a pending action ... between the petitioner and the respondent and that a determination of such issues may make the arbitration unnecessary, the court may delay its order to arbitrate until the

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